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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**AMENDED MOTION TO ALLOW
USE OF PORTABLE ELECTRONIC
DEVICES BY THE NEWS MEDIA
AND THEIR COUNSEL**

Case No. 251403576

Hon. Tony F. Graf, Jr.

MOTION AND RELIEF SOUGHT

The news media represented herein through their undersigned counsel (“News Media”), respectfully submit this Amended Motion (“Motion”) to allow the News Media and their counsel to silently use their portable electronic devices in the courtroom, in the manner described below, during the duration of the preliminary hearing in this matter.

Although the Court declined to amend its Minute Entry Order to permit the News Media and their counsel to use portable electronic devices during the preliminary hearing, the Court invited the News Media to submit a renewed request or alternative protocol that addresses the Court's concern with "in-court, real-time transmission by data-capable devices." (Dkt. 676 at 4, 6-7, and 9.). Accordingly, the News Media submit the following request and proposals.

First, the News Media respectfully request that the Court reconsider the prohibition on the transmission of real-time news updates and reporting by the News Media because the rationale for such a ban is flawed. The Court's Ruling and Order ("Ruling") reasons that the ban is needed because "[r]eal-time transmission from inside the courtroom increases the risk that partial accounts of contested matters will circulate before the Court has completed its rulings or before the context of the testimony is apparent." (Dkt. 676 at 6). But the same could be said of any news reporting of any criminal court hearing or case—they unfold in many acts, most of which are provisional, until the hearing or case concludes. Preventing the public from receiving news reports on the preliminary hearing as it unfolds will not safeguard the accuracy, reliability, or integrity of the reporting or proceedings any more than barring the public from viewing the livestream of the proceedings would.

Few people are likely to view the entire livestream of the preliminary hearing, much less a single day of it. Accordingly, the public may view testimony, contested matters, and potentially inadmissible evidence before "the Court has completed its rulings or before the context of the testimony is apparent." (Dkt. 676 at 6). That, of course, is no reason to deprive the public of the benefits of electronic media coverage of these proceedings, including livestreaming. The same is true with in-court, real-time news reporting of the preliminary hearing—the fact that such reporting can only capture the status of the proceedings up until the

time of the report (as all news reporting does) is not reason to prohibit it. Finally, if “contested testimony, proffers, objections, and potentially inadmissible information” (Dkt. 676 at 5) were enough to ban media use of portable electronic devices at court hearings, then the media would be prevented from using such devices at nearly every evidentiary hearing, and certainly at every preliminary hearing, and Utah Code of Judicial Administration 4-401.02, which authorizes in-court use of portable electronic devices, would be rendered meaningless.¹

Second, if the Court is not inclined to modify its Ruling to permit the media representatives to use their electronic devices for in-court, real-time news reporting, then at a minimum news reporters should be permitted to use such devices with internet/data transmission functionality disabled. News reporters are already bound by the Court’s Standing Decorum Order Effective February 24, 2026 (“Decorum Order”), which requires media representatives to identify themselves, produce appropriate photo identification, and comply with the Court’s orders and Rules. Decorum Order at 4. News reporters will similarly be bound by, and obligated to obey, all other orders of the Court governing use of portable electronic devices, as well as UCJA Rule 4-401.02. Accordingly, the News Media propose that the Court permit media representatives with appropriate identification to use their portable electronic devices,

¹ The fact this is a high-profile case that has attracted significant public interest weighs in favor of media use of electronic devices, not against. The Court has previously ruled that public access to and electronic media coverage of the preliminary hearing, including livestreaming, serves the public interest and that less restrictive alternatives are available to protect the defendant’s right to a fair trial, including use of an expanded juror pool, written juror questionnaire, thorough and searching voir dire, admonitions, sequestration, change of venue, and other time-tested judicial tools. (*See, e.g.*, Dkt. 563.) As with livestreaming, allowing news reporters to use their electronic devices to take notes, compose news stories, and send updates on the proceedings in real time serves the public interest in receiving timely and accurate information about the proceedings. And the same judicial tools to protect fair trial rights are obviously available with respect to the exposure by potential jurors to news reporting, whether real-time or otherwise, of the preliminary hearing.

with internet/data transmission functionality disabled, for the purpose of note-taking, composing news reports, and similar (non-online) tasks. As a further precaution, the Court may also consider adopting a protocol similar to the one it currently uses at the outset of each hearing to ensure that the media pool video and still camera photographers understand and agree to comply with the Decorum Order governing electronic media coverage. Toward that end, following the Court's colloquy with the media pool photographers, the Court could require that media representatives using electronic devices identify themselves and agree to comply with the Court's order permitting use of electronic devices with internet/data transmission functionality disabled. This would address the Court's concern with real-time text transmission while allowing news reporters to use their devices for note-taking, composing news reports, and similar journalistic tasks.

Third, as officers of the Court, counsel for the News Media should enjoy the same rights, privileges, and courtesies that are extended to counsel for all other participants in these proceedings, including counsel for the State, defense, and Victim's Representative. Counsel for the News Media have a legally recognized "functional role" in these proceedings (Dkt. 676), just as counsel for the parties and Victim's Representative do, and have been present at the hearings in this case to address matters involving public and media access to the proceedings, court records, and electronic media coverage.² Accordingly, the News Media respectfully

² See *Soc'y of Pro. Journalists v. Bullock*, 743 P.2d 1166, 1174 (Utah 1987) ("[T]he requirement of adverse impact [for standing purposes] is met by anyone who claims a right of access to a judicial proceeding and then actually takes steps to exercise that right but is denied access."); *Kearns-Tribune Corp. v. Lewis*, 685 P.2d 515, 518–21 (Utah 1984) (holding that under the U.S. and Utah Constitutions, "people have a constitutional right of public access to criminal trials and preliminary hearings"); UCJA Rule 4-202.04 (allowing requests for access to court records).

request that their counsel be similarly exempt any order restricting use of portable electronic devices in the courtroom.

Counsel for the defense opposed the News Media's prior Motion to Amend and presumably also oppose this Motion. Counsel for the State did not object to the News Media's prior Motion to Amend.

Accordingly, the News Media respectfully request that the Court allow media representatives and counsel for the News Media to use their portable electronic devices, as described herein, during the duration of the preliminary hearing.

RESPECTFULLY SUBMITTED this 4th day of July 2026.

PARR BROWN GEE & LOVELESS

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